

Opinion of the Court

mous verdicts are insufficient to convict in 48 States and federal court.

Instead, the only reliance interests that might be asserted here fall into two categories. The first concerns the fact Louisiana and Oregon may need to retry defendants convicted of felonies by nonunanimous verdicts whose cases are still pending on direct appeal. The dissent claims that this fact supplies the winning argument for retaining *Apodaca* because it has generated “enormous reliance interests” and overturning the case would provoke a “crushing” “tsunami” of follow-on litigation.⁶⁷

The overstatement may be forgiven as intended for dramatic effect, but prior convictions in only two States are potentially affected by our judgment. Those States credibly claim that the number of nonunanimous felony convictions still on direct appeal are somewhere in the hundreds,⁶⁸ and retrying or plea bargaining these cases will surely impose a cost. But new rules of criminal procedures usually do, often affecting significant numbers of pending cases across the whole country. For example, after *United States v. Booker* held that the Federal Sentencing Guidelines must be advisory rather than mandatory, this Court vacated and remanded nearly 800 decisions to the courts of appeals. Similar consequences likely followed when *Crawford v. Washington* overturned prior interpretations of the Confrontation Clause⁶⁹ or *Arizona v. Gant* changed the law for searches incident to arrests.⁷⁰ Our decision here promises to cause less, and certainly nothing before us supports the dissent’s

⁶⁷ *Post*, at 140, 158.

⁶⁸ Brief for State of Oregon as *Amicus Curiae* 13 (“In 2018 alone . . . there were 673 felony jury trials in Oregon, and studies suggest that as many as two-thirds of those cases would have had a non-unanimous verdict”). At most, Oregon says the number of cases remaining on direct appeal and affected by today’s decision “easily may eclipse a thousand.” *Id.*, at 12.

⁶⁹ 541 U. S. 36, 60–63 (2004).

⁷⁰ 556 U. S. 332, 345–347 (2009).